

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 22, 2026
8:30 a.m.

2. ALICIA E. REA V. NEIL Z. ASTRONOMO

24FL0388

This matter is on calendar for a two-year dismissal under Code of Civil Procedure section 583.420, which authorizes the court to dismiss an action for delay in prosecution where service is not made within two years after the action is commenced. (Code Civ. Proc., § 583.420, subd. (a)(1).) The action was filed on April 16, 2024.

On February 02, 2026, the Petitioner filed proof of service of summons on the Respondent (showing personal service on May 03, 2024). The court also notes that the Petitioner has recently submitted two separate requests for default judgment, showing an effort to proceed with the case. Therefore, the court will drop the matter from the calendar.

TENTATIVE RULING #2: MATTER IS DROPPED FROM THE CALENDAR.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 22, 2026
8:30 a.m.

3. BRIAN EDWARD SEAHOLM V. VANESSA RUELLYN SEAHOLM 25FL0271

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on March 10, 2026, to modify child custody. The RFO also includes a request for temporary emergency orders, which the court denied the same day it was filed. On March 19, 2026, Respondent filed a Declaration (Judicial Council form MC-030) with several attachments. Proof of service, also filed March 19, 2026, shows that the RFO, as well as Judicial Council form MC-030 and its attachments, were electronically served upon Petitioner that same day.¹

On April 06, 2026, Petitioner filed a Responsive Declaration, a copy of which was electronically served upon Respondent that same day according to the proof of service, also filed April 06, 2026.

Respondent filed no timely reply declaration.

The court notes it generally does not issue a new CCRC referral on a contested custody matter where a CCRC report has been issued within the past six months. (El Dorado Super. Ct., Local Ct. R. 8.10.01.) In this case, the instant RFO was filed roughly two-and-a-half months after the previous CCRC report, issued January 22, 2026. Therefore, the court did not issue a new CCRC referral upon the filing of the instant RFO. However, the court notes that the January 22, 2026, CCRC report was a “One Parent” report due to the fact that the Respondent declined to participate, stating she was not ready. Therefore, the court will re-refer the parties to CCRC.

The court orders the parties to participate in CCRC on Thursday, May 07, 2026, at 9:00 a.m. and sets the matter for review on Wednesday, June 24, 2026, at 8:30 a.m. in Department 12 of the court. The court will issue a new Tentative Ruling by 2:00 p.m. the day prior to the new hearing date. Any supplemental declarations in response to the new CCRC report must be served and filed at least 10 days prior to the new hearing date. The parties are directed to submit the required CCRC questionnaire (Local Form F-17a, which can be downloaded from the court’s website or obtained from the Clerk’s Office) at least five days prior to the CCRC session.

TENTATIVE RULING #3: THE COURT ORDERS THE PARTIES TO PARTICIPATE IN CCRC ON THURSDAY, MAY 07, 2026, AT 9:00 A.M. AND SETS THE MATTER FOR REVIEW ON WEDNESDAY, JUNE 24, 2026, AT 8:30 A.M. IN DEPARTMENT 12 OF THE COURT. ANY SUPPLEMENTAL DECLARATIONS IN RESPONSE TO THE NEW CCRC REPORT MUST BE SERVED AND FILED AT LEAST 10 DAYS PRIOR TO THE NEW HEARING DATE. THE PARTIES ARE DIRECTED TO SUBMIT THE REQUIRED CCRC QUESTIONNAIRE (LOCAL

¹ The proof of service shows that Respondent, herself, performed the electronic service. Generally, service must be completed by a third party. In this case, Petitioner filed a Responsive Declaration, thereby waiving any defect in service.